

23NWCV02319 23NWCV02319

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Case Number: 23NWCV02319 Hearing Date: July 14, 2026 Dept: SED

MARIBEL CORTEZ, ET AL. V. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 23NWCV02319

HEARING: 07/14/2026 @ 9:30 a.m.

#12

TENTATIVE ORDER

Plaintiffs' Maribel Cortez and Jose Luis Cortes Magana's motion for attorneys' fees is GRANTED

Defendant American Honda Motor Co., Inc. is ordered to pay the awarded amount within 90 days of this Order.

Moving parties to give notice.

Plaintiffs Maribel Cortez and Jose Luis Cortes Magana (collectively, Plaintiffs) move for an order awarding attorneys' fees, costs, and expenses in the amount of \$30,494.68.

Background

This is a lemon law case. On July 28, 2023, Plaintiffs filed the operative Complaint against Defendant American Honda Motor Co., Inc. (American Honda) and Does 1 through 10, inclusive, asserting one cause of action for Violation of the Song-Beverly

Act–Breach of Express Warranty.

Legal Standard

If a buyer-plaintiff prevails in an action under Civil Code section 1794, “the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorneys’ fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794 (d).)¿

Analysis

Plaintiffs move for an order awarding attorneys’ fees, costs, and expenses in the amount of \$30,494.68.

Here, Plaintiffs are the prevailing party in this action and American Honda’s opposition does not contend otherwise.

Thus, Plaintiffs are entitled to reasonable attorneys’ fees. The only issue pending before this court is the amount of the award.

Reasonableness of Hourly Rate

Plaintiffs’ counsel requests the following hourly rates:

-

Roger

Kirnos: \$600

-

Chris

Swanson: \$575

-

Debra

Reed: \$495

-

Elvira

Kamosko: \$295

-

Harita

Nandivada: \$375

-

Jacob

Cutler: \$550

-

Keishunn

Johnson: \$375

-

Timothy

Lupinek: \$450 (2024); \$500 (2025)

-

Thach

Tran: \$395 (2023); \$425 (2024); \$475 (2025)

-

Kasey

Xicara (paralegal): \$145

In opposition, American Honda argues that Plaintiffs have failed to demonstrate that the requested hourly rates are reasonable. According to American Honda, the rates are excessive for a routine Song-Beverly action, particularly where counsel billed premium rates for administrative tasks, internal conferences, travel, and other non-complex work. (Opp., pp. 6-10.) American Honda further contends that the billing records reflect inconsistent hourly rates that undermine Plaintiffs' claimed market rates and argues that Plaintiffs have not shown that the hourly rates cited from other cases were actually approved by those courts. (Id.)

In reply, Plaintiffs contend that they submitted ample evidence supporting the requested hourly rates, including attorney declarations, prior fee awards, and appellate authority approving comparable rates. (Reply p. 3-5.) Plaintiffs argue that *Mikhaeilpoor v. BMW of North American, LLC* (2020) 48 Cal.App.5th 240, on which American Honda

relies upon, is distinguishable and that American Honda's assertion that counsel charged inconsistent rates for different tasks misreads the billing records, as any rate increases merely reflect annual adjustments for experience and inflation during the litigation. (Ibid.)

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

The Court finds that Plaintiffs have shown that their requested hourly rates reflect the prevailing market rates for attorneys of comparable skill and experience in the relevant community. Plaintiffs' attorneys take cases on a contingency and, unlike defense counsel who work for large companies, there is no guarantee that Plaintiffs' attorneys will get paid when they agree to take a case. It is not unreasonable that the hourly rates for plaintiffs' lemon law attorneys are higher than the hourly rates for defense counsel in certain circumstances.

Accordingly, the Court concludes that Plaintiffs' requested rates are reasonable.

Reasonableness of Hours Billed

The trial court has an obligation to award only those attorneys' fees that are reasonable. (See PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).)

Although a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred," (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682), counsel still has the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.)

Plaintiffs seek an award for attorneys' fees representing a total amount of 52.4 hours, plus a 1.2 lodestar multiplier. (Kirnos Decl., ¶ 2, Ex. A.)

The Court has reviewed and considered Plaintiffs' counsel's attached

billing records, together with Defendant's objections to the reasonableness of certain billing entries. (Kirnos Decl., ¶ 2, Ex. A; Workman Decl., ¶ 2, Ex. A). The Court further notes that Plaintiffs exercised billing judgment by designating numerous entries as "no charge" and voluntarily excluding certain time from the fee request. Accordingly, the Court declines to make the broad reductions urged by Defendant and instead limits its reductions to those entries the Court finds were not reasonably necessary. The Court determines that the following time allocations are unreasonable:

- Counsel billed a total of 1.5 hours on August 20 and 21, 2024, to prepare internal post-deposition reports following the depositions of Plaintiffs. Because these entries reflect internal summaries prepared after counsel attended the depositions, the Court finds the time excessive. The Court finds that 0.8 hours was reasonably necessary and will strike 0.7 hours.

- Counsel billed 0.5 hours on August 20, 2024, to review Plaintiffs' supplemental document production and video before producing the materials to Defendant, in addition to billing separate time for a paralegal to prepare the production. The Court finds this review partially duplicative and reduces the time to 0.3 hours, striking 0.2 hours.

- Counsel billed 8.1 hours to prepare the instant motion for attorneys' fees, including reviewing billing records, preparing the supporting declaration, exhibits, and other motion papers. While Plaintiff is entitled to recover reasonable fees incurred in preparing a fee motion, the Court finds the time excessive for a routine Song-Beverly fee motion. The Court finds that 2.0 hours was reasonably necessary to prepare the motion and supporting papers, 1.0 hour to review Defendant's opposition and prepare the reply, and 1.0 hour to appear at the hearing, for a total of 4.0 compensable hours. Accordingly, the Court will strike 4.1 hours from Plaintiff's request.

Accordingly, the Court will strike a total of 5 hours from the motion.

Lodestar Multiplier

The Court

disagrees with Plaintiffs that the contingency nature of this representation warrants either a higher hourly rate or the application of a fee multiplier. The contingency risk is already reflected in the reasonable hourly rate of Plaintiffs' counsel. Moreover, the risk in this case was not particularly high. Actions brought under the Song-Beverly Consumer Warranty Act frequently settle, as this one did, and the Act's mandatory fee-shifting provision further reduces the financial risk borne by Plaintiffs' counsel.

Accordingly, the Court awards Plaintiffs attorneys' fees in the amount of \$18,638.50.

Memorandum of Costs

A verified memorandum of costs is prima facie evidence concerning the reasonableness of costs and expenses claimed by the Plaintiff. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs". (*Id.*)

Plaintiffs filed a costs memorandum seeking \$4,764.88, in litigation costs related to filing and motion fees, service of process, and electronic filing or service.

American Honda does not raise any specific objection to the memorandum of costs or challenge any particular cost item as unreasonable or unnecessary. The Court has reviewed the memorandum of costs and finds that the requested costs were reasonably incurred.

Accordingly, the Court awards Plaintiffs \$4,764.88 in costs.

Conclusion

Plaintiffs Maribel Cortez and Jose Luis Cortes Magana's motion for attorneys' fees is GRANTED in the total reduced amount of \$23,403.38,

representing attorneys' fees in the amount of \$18,638.50 and litigation costs in the amount of \$4,764.88.